

BEFORE THE IOWA BOARD OF
BEHAVIORAL SCIENCE EXAMINERS

IN THE MATTER OF THE
STATEMENT OF CHARGES

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CASE NUMBER: 05-016

**SETTLEMENT AGREEMENT
AND FINAL ORDER**

EARL T. ANDERSON,

Respondent.

COME NOW the Board of Behavioral Science Examiners of the State of Iowa ("Board") and Earl T. Anderson ("Respondent"), and pursuant to Iowa Code sections 17A.10 and 272C.3(4), enter into the following Settlement Agreement and Final Order of the contested case currently on file against the Respondent:

1. The Respondent was originally licensed to practice as a mental health counselor in the state of Iowa on March 26, 2003, and holds license number 00816.
2. A Notice of Hearing and Statement of Matters Asserted was filed against the Respondent on February 10, 2006. A contested case hearing in this matter is scheduled for May 12, 2006. The Respondent admits all allegations set forth in the Notice of Hearing and Statement of Matters Asserted.
3. The Board has jurisdiction over the parties and subject matter of the Notice of Hearing.
4. Execution of this Settlement Agreement and Final Order constitutes the resolution of this contested case. Respondent has a right to a hearing on the charges, but waives his right to hearing and all attendant rights, including the right to seek judicial review, by freely and voluntarily agreeing to this Settlement Agreement and Final Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following contested case hearing.

5. Respondent is freely and voluntarily entering into this Settlement Agreement and Final Order, and he agrees that the State's counsel may present this agreement to the Board.

6. This agreement is subject to approval of the Board. If the Board approves this agreement, it becomes the final disposition of this matter. If the Board fails to approve this agreement, it shall be of no force or effect to either party.

7. This agreement shall be part of the permanent record of Respondent and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

8. In the event Respondent violates or fails to comply with any of the terms of this Settlement Agreement and Final Order, the Board may initiate appropriate action to revoke or suspend Respondent's license or to impose other licensee discipline in accordance with Iowa Code section 272C.3(2)(a).

9. This Settlement Agreement and Final Order and the Statement of Matters Asserted become public records available for inspection and copying upon execution of this agreement in accordance with the requirements of Iowa Code Chapters 22 and 272C. The Notice of Hearing is also a public record which became available for inspection and copying the date it was filed in accordance with the requirements of Chapters 17A, 22, and 272C.

10. The Board's approval of this agreement shall constitute a FINAL ORDER of the Board.

IT IS THEREFORE ORDERED:

11. **CITATION AND WARNING:** Respondent is hereby **CITED** for knowingly making misleading, deceptive, untrue, and fraudulent representations on his renewal application. Respondent is further **CITED** for having his license revoked by a licensing

authority of another state and for failing to report in writing to the Iowa Board the out-of-state Board revocation. Respondent is hereby **WARNED** that future violations may result in further disciplinary action, including revocation of his Iowa mental health counseling license.

12. **PROBATION.** Respondent's license shall be placed on probation for a period of three years, subject to the following terms and conditions:

- A. **Monitoring Program:** Respondent shall fully comply with all requirements established in his Board monitoring program.
- B. **Alcohol Prohibition:** Respondent shall not consume alcohol. Respondent shall not consume any foods containing poppy seeds or alcohol or use products containing alcohol.
- C. **Controlled or Prescription Drug Consumption:** Respondent shall not use any controlled or prescription drug in any form unless the controlled or prescription drug has been prescribed for Respondent's use by another qualified treating health care provider. Respondent shall provide the Board written notice within 72 hours of the use of any controlled or prescription drug. Respondent shall inform all treating health care providers of his history of substance abuse prior to receiving any prescription drug.
- D. **Drug Screening Program:** Respondent shall submit to the Board's drug screening program and agrees to comply with all requirements of the drug-screening program. Respondent shall provide random blood or urine specimens when required. Respondent shall ensure that all urine

samples are appropriately witnessed as required by the drug screening program and agrees that samples that are not visually witnessed will be considered invalid.

Respondent understands that the “incidental” use of alcohol (i.e. in mouthwash, hand cleaning gel, or over the counter medications containing alcohol) may cause a positive test that cannot be differentiated from intentional ingestion. Respondent agrees that all confirmed, positive tests will be presumed valid and that he has the burden of proof to establish that a positive report was erroneous.

Respondent shall also provide random blood or urine specimens on demand by an agent of the Board.

The specimens collected pursuant to this paragraph shall be used for drug and alcohol screening, all costs of which shall be paid by Respondent.

- E. **Substance Abuse Meetings:** Respondent shall attend at least ten Alcoholics Anonymous (AA) or similar substance abuse meetings monthly, and not less than two each week. Respondent shall obtain documentation of attendance and include copies of this documentation with his quarterly reports. Respondent shall have at least weekly contact with his AA sponsor.

F. **Substance Abuse Treatment:** Respondent shall follow all recommendations of his substance abuse treatment providers.

(1) Respondent's substance abuse counselor shall submit written quarterly reports to the Board concerning Respondent's progress. The reports shall be filed with the Board not later than 1/20, 4/20, 7/20 and 10/20 of each year of Respondent's probation.

(2) Respondent shall continue with counseling until discharged by the Board-approved physician or counselor and until Respondent's discharge from counseling is approved by the Board.

(3) Respondent shall meet with his Board-approved counselor as frequently as recommended by the physician or counselor and approved by the Board. All costs shall be the responsibility of Respondent.

G. **Worksite Monitor:** Respondent shall have a health care practitioner who regularly observes and/or supervises him at his practice location serve as his worksite monitor. The Board shall provide a copy of this agreement to the worksite monitor. The worksite monitor shall provide a written statement indicating that he or she agrees to act as the worksite monitor under the terms of this agreement. The worksite monitor shall agree to inform the Board immediately if there is evidence of impairment, inappropriate behavior, professional misconduct, a violation of the terms of this Settlement Agreement or any violation of the laws and rules governing the practice of mental health counseling. The monitor shall agree to

submit quarterly reports to the Board concerning Respondent's progress.

The reports shall be filed with the Board not later than 1/20, 4/20, 7/20 and 10/20 of each year of Respondent's probation.

H. **Quarterly Reports:** Respondent shall file sworn quarterly reports with the Board attesting to his compliance with all of the terms and conditions of this Settlement Agreement. The reports shall be filed not later than 1/20, 4/20, 7/20 and 10/20 of each year of the Respondent's probation.

I. **Board Appearances:** Respondent shall make appearances before the Board or a Board committee annually or upon request. Respondent shall be given reasonable notice of the date, time and location for the appearances. Said appearances shall be subject to the waiver provisions of 645 IAC 9.7.

J. Respondent shall obey all federal, state and local laws, and all rules governing the practice of mental health counseling in Iowa.

K. Respondent agrees to submit to random unannounced visits to his place of employment by the Board or its designee to verify compliance with this Settlement Agreement and Final Order. The Respondent shall fully cooperate in visits, reviews or evaluations by the Board or its designee.

L. Periods of practice outside the state of Iowa or periods during which Respondent's license is inactive will not apply to the duration of the probation contained in the Settlement Agreement and Final Order.

M. Respondent shall remit to the Board a civil penalty in the amount of one thousand dollars (\$ 1000.00) made payable to the Treasurer, State of Iowa, within

ninety (90) days of the date of this agreement.

N. The period of probation shall terminate following the three year time period provided that Respondent has fully complied with the terms and conditions for probation set forth in this Settlement Agreement and Final Order.

This settlement agreement and final order is approved by the Board on May 12, 2006.